



File No.: EXP202306651

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on June 29, 2022. The complaint is directed against "Envialia."

The complaint states:

"Today, June 28 at 14:30, the courier called me from phone ***PHONE.1 to deliver a package from Carrefour. Since I was not at home, I instructed him to leave it with my neighbor on the first left, B.B.B. He said that was fine. When I arrived home 20 minutes later, my neighbor told me that nothing had been delivered to him. I called the transporter, and he told me that a guy in a cap passed by the entrance and said it was him, and he handed it over without further ado. I have complained to the transport company, and they tell me that a certain C.C.C. took it and that I should check with the neighbors, when they should be doing that. It is not only the lack of a solution for the literal theft of my package, but also that it contained, in addition to my goods, all my personal data, ID, phone number, address, name, surname, and an invoice of the purchased items with my banking details, data that I have never authorized them to give to a stranger who can use it unlawfully, causing me great harm. Therefore, I ask for your intervention."

Along with the complaint, a thread of emails exchanged with "Envialia" is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to ENVIALIA WORLD (hereinafter, EW) for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 28, 2022, as stated in the certificate included in the file.

On August 25 of that same year, a response was received by this Agency indicating that "...it had not been aware of it until the notification received from the AEPD, so it could not respond to the claimant, as we did not have either the complaint or their contact details. We proceed to respond to the email listed in Annex 1 (***USER.1@hotmail.com) and attach a copy of the response given.

b) Regarding the decision made concerning this complaint: It is necessary to understand the roles of the different companies involved in the delivery process:

Client: Contracts the services of the cargo agency.

Cargo Agency: Acts as the Data Controller, has a contract with Envialia World that provides it with the Envialia Network formed by other agencies with which it has contracts.

Envialia World: Acts as the Data Processor.

Cargo Agency: Acts as a sub-processor.

Recipient: Is the interested party and, in this case, harmed by the malpractice of the courier from the cargo agency.

From Envialia World, we consider this fact as theft, and in this situation, we inform the responsible agencies to file the corresponding complaint.

On the other hand, whether it is the Cargo Agency, ENVIALIA WORLD, or the destination agency, they are only responsible for the data that appears on the label accompanying the package to be delivered; in no case can they be responsible for the data that may be inside the package (such as the invoice mentioned by the interested party with their banking details) since none of the ENVIALIA companies or involved agencies have access to or should access this data and do not even know what is inside the package.

We understand that if there is any type of violation of the rights of the interested party, it is by the sub-processor, which is the destination agency. For this reason, we proceed to inform you of the complaint received and analyze the reasons that led to the malpractice in the delivery and to demand

the application of measures that prevent the problem from recurring...".

THIRD: On August 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On April 12, 2023, information was requested from EW to provide:

"1. Description of all parties involved in the commercial relationship and the process of collection/delivery of the shipments.

2. Documentation that certifies the relationships of ENVIALIA WORLD S.L. with the parties described in its response, and in particular the data processing agreement, as point 2.b) of its response defines ENVIALIA WORLD S.L. as the Data Processor."

On April 27, 2023, a response was received in the following terms:

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Respond to the FIRST point of the request: "Client: CENTROS COMERCIALES CARREFOUR, S.A., with NIF A28425270, and domiciled at P.I. "Las Mercedes", calle Campezo 16, 28022 Madrid. Cargo agency; FOURTH PARTY LOGISTICS, S.L., with NIF B86496007 and domiciled at Avenida Suiza 2, 28821, Coslada, Madrid. FOURTH PARTY LOGISTICS S.L. operates under the brand ENVIALIA, within a national transport network. FOURTH PARTY LOGISTICS subcontracts the services of FOURTH PARTY SERVICES, S.L., a company within the same network, which maintains relationships with ENVIALIA WORLD, S.L., established in a transport and messaging contract. ENVIALIA WORLD S.L. makes its transport network available to FOURTH PARTY SERVICES S.L. to carry out the management and provision of services. In this case, the messaging shipment was carried out directly by FOURTH PARTY SERVICES S.L., through the company THE BEE LOGISTICS, SLU, which was responsible for delivering the package to Ms. A.A.A. The courier delivered the package to the neighbor indicated by Ms. A.A.A., a fact not disputed by the complainant; however, she states that her name is B.B.B. and the package was delivered to C.C.C., who collected it and provided their ID. On the other hand, the data available only to FOURTH PARTY SERVICES S.L. are those appearing on the package, which are solely identifying, and in no case are there any banking details or national identity document or equivalent. In any case, after the incident, FOURTH PARTY SERVICES S.L. requested that THE BEE LOGISTICS, SLU adopt preventive and reactive measures, and review with its employees the Enviaia Operations Manual for proper compliance. The collection and delivery process is as follows:

1. The client purchases from Carrefour through its online platform, and once the purchase process is completed, it gives the order to its transport and messaging provider, FOURTH PARTY LOGISTICS S.L., to carry out the delivery. The daily communication of the list of shipments that will travel through the Enviaia network is carried out through a SOAP Service, where an XML is extracted with the necessary data for the correct management and delivery of the same (address, type of service, observations, etc.). The label is generated from a ZPL code, with a barcode in CODE (...).

2. FOURTH PARTY LOGISTICS, through FOURTH PARTY SERVICES, carries out the delivery of this package, with the collaboration of the transport company THE BEE LOGISTICS, contracted for this service.

3. THE BEE LOGISTICS SLU delivers to the person indicated by the buyer - Ms. A.A.A. -."

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Respond to the SECOND point of the request: "In response to this question, we attach the current

contract formalized between CARREFOUR and FOURTH PARTY LOGISTICS S.L. The contract between FOURTH PARTY LOGISTICS and THE BEE LOGISTICS SLU is a verbal contract, as until September 2022 the RD-Law 3/2022 came into effect, which established the obligation that contracts for continued transport be in writing, also granting full validity for sporadic transport contracts solely to the corresponding waybill.”

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EW provides a copy of a service contract between FOURTH PARTY LOGISTICS S.L. and CENTROS COMERCIALES CARREFOUR S.A. for the distribution, home delivery, and delivery of the sold goods. FIFTH: On June 14, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR as classified in Article 83.5 of the GDPR, and for the alleged infringement of Article 32 of the GDPR as classified in Article 83.4 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: It has been established in the file that THE BEE LOGISTICS was the company responsible for delivering the package to the claimant.

SECOND: It is established that the package sent was received by a person other than the intended recipient.

THIRD: It is established in the file that the personal data of the claimant, name and surname, as well as the postal address, were improperly exposed to a third party as a result of the receipt of the shipment of which they were the intended recipient, with THE BEE LOGISTICS being the company responsible for the delivery of the package.

LEGAL GROUNDS

I

Competence
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In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, THE BEE LOGISTICS was the company responsible for delivering the package to the claimant in the manner it had agreed with them; however, it delivered it to a third party without the consent of the claimant.

THE BEE LOGISTICS is a company engaged in the development of postal and mail activities, including the transportation of goods by road, inland waterways, sea, or air, with any vehicle and load, as well as the transportation of passengers by inland waterways and other activities ancillary to land transport.

In the exercise of this activity, THE BEE LOGISTICS carries out, among other treatments, the collection, consultation, use, and access to the following personal data of clients, such as: name, surname, ID number, foreign identification number, and/or passport, postal address, phone number, etc.

THE BEE LOGISTICS carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, section 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach since the personal data of the claimant (such as name and surname, postal address) were exposed to a third party when receiving a shipment of which they were the intended recipient.

It should be noted that the receipt of a complaint regarding a security breach does not imply the direct imposition of a sanction; as it is necessary to analyze...

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for the diligence of those responsible and in charge and the security measures applied, in accordance with the provisions of Article 32 of the GDPR.

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

On June 28, 2022, the complainant received a call from an employee, as stated by the complainant, of ENVIALIA, responsible for managing a shipment of which the complainant was the recipient, sent by the company CARREFOUR to arrange the delivery of a package.

As the complainant was not at home at that moment, they instructed the courier to leave the package at the neighbor's house on the 1st left, named B.B.B. However, their neighbor stated that they had not received any package, prompting the complainant to call the courier, who said that upon entering the building where the complainant's residence is located, a person told him that he was the one in charge of picking up the package and handed it over to him without further ado.

In this case, it is noted that the personal data of the complainant, including their name and surname, as well as their postal address, were improperly exposed to a third party as a result of the receipt of the shipment of which they were the recipient, with THE BEE LOGISTICS being the company responsible for the delivery of the package.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year limitation period: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

V

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is necessary to graduate the sanction to be imposed in accordance with the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

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b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard. [Judgment of the National Court of 10/17/2007 (rec. 63/2006)]

It is also considered appropriate to graduate the sanction to be imposed in accordance with the following criteria established in paragraph 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

As aggravating factors:

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b) The link of the infringer's activity with the processing of personal data.

THE BEE LOGISTICS, SLU is a company engaged in the development of postal and courier activities, including the transportation of goods by road, inland waterways, sea, or air, with any

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vehicle and cargo, as well as the transportation of passengers by inland waterways and other activities related to land transportation.

Transport companies and postal and mail activities must have detailed technical and administrative measures in place to comply with data protection regulations.

In a freight transport company, many employees are in contact with the information managed by the

company, so the company has the responsibility to inform these employees of their functions and responsibilities in the use of this information, as well as to ensure compliance with data protection law. Transport companies handle a significant amount of data, including customer data, data related to their shipments, as well as that of employees and suppliers.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5.1.f) of the GDPR, allows for a penalty of €50,000 (FIFTY THOUSAND EUROS).

VI

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

In the present case, at the time of the breach, it is noted that THE BEE LOGISTICS did not have reasonable security measures in place based on the estimated potential risks.

The delivery of a shipment to a third party different from the one previously agreed upon with the recipient evidences the lack of appropriate technical and organizational security measures to ensure a level of security adequate to the risk in the processing of the personal data of the recipients of the shipments.

VII

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Infringements of the following provisions shall be subject to administrative fines of up to €10,000,000 or, in the case of an undertaking, an amount equivalent to 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the

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risk of treatment, in the terms required by Article 32.1 of the Regulation (EU) 2016/679.

VIII

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is necessary to graduate the sanction to be imposed in accordance with the following criteria established by Article 83.2 of the GDPR:

As aggravating factors:

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b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be emphasized that rigor and exquisite care must be taken to comply with the legal provisions in this regard. [Judgment of the National Court of 17/10/2007 (rec. 63/2006)]

It is also considered appropriate to graduate the sanction to be imposed in accordance with the following criteria established in section 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

As aggravating factors:

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b) The connection of the infringer's activity with the processing of personal data.

THE BEE LOGISTICS, SLU is a company dedicated to the development of postal and mail activities, including the transportation of goods by road, inland waterways, sea, or air, with any vehicle and load, as well as the transportation of passengers by inland waterways and other activities ancillary to land transportation.

Transport companies and postal and mail activities must have detailed the technical and administrative measures they have activated to comply with data protection regulations.

In a goods transportation company, many employees are in contact with the information handled by the company, so the company has the responsibility to inform these employees of their functions and responsibilities in the use of this information, in addition to ensuring compliance with data protection law.

Companies engaged in transportation handle a significant amount of data, both customer data, data related to their shipments, as well as that of employees and suppliers.

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The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 32 of the GDPR, allows for the imposition of a sanction of €20,000 (TWENTY THOUSAND EUROS).

IX

Adoption of measures

The text of the resolution establishes what the infringements committed have been and the facts that

have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on THE BEE LOGISTICS, S.L., with NIF B88640735, for an infringement of Article 5.1.f) of the GDPR classified in Article 83.5 of the GDPR, a fine of €50,000 (FIFTY THOUSAND EUROS).

TO IMPOSE on THE BEE LOGISTICS, S.L., with NIF B88640735, for an infringement of Article 32 of the GDPR classified in Article 83.4 of the GDPR, a fine of €20,000 (TWENTY THOUSAND EUROS).

SECOND: TO NOTIFY this resolution to THE BEE LOGISTICS, S.L.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. In the event of non-compliance, collection will proceed in the executive period.

Once the notification is received and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the immediate subsequent business day, and if it is

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finds between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day

following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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